

TENTATIVE RULINGS

DEPARTMENT N17

Judge Craig L. Griffin

**Date: December 4, 2023
Time: 2:00PM**

If you are submitting to the tentative, please call the Clerk at (657) 622-5617.

Appearances may be IN PERSON or through ZOOM. If appearing by ZOOM, go to <https://www.occourts.org/media-relations/civil.html> and click on the yellow box that reads: "CLICK HERE TO APPEAR FOR THE ONLINE CHECK-IN/ZOOM PILOT PROGRAM." Call the department with any questions.

COURT REPORTERS: Official Court Reporters (i.e. Court Reporters employed by the Court) are NOT typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the Court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of Court Reporters.

PUBLIC ACCESS: The public may attend the ZOOM session by telephone. Call the department for a call-in number.

#	Case Name	Tentative
1	Roberson v. G & M Oil Company, Inc.	O/C
2	Romero v. Ford Motor Co.	O/C
3	Alonso vs. JCR Aircraft Deburring	Plaintiff Maria Alonso's ("Plaintiff") Motion to Compel ("Motion") Non-party Compliance with a Deposition Subpoena is DENIED without prejudice. As with the prior version of this Motion, it was not properly served on non-party Labor Law Employer Defense Corporation ("LLEDCE"). Service of motions on a non-party must be made via personal service unless otherwise agreed to. (CRC Rule 3.1346.) Here, the Motion was served on LLEDCE via mail and via email to LLEDCE's "webmaster." Neither of these constitutes personal service. There is no evidence LLEDCE agreed to receive motions via mail or email. LLEDCE did not provide any response to the Motion, which also suggests it was not properly served. The Motion is once again denied without prejudice due to improper service.

		Plaintiff to give notice.
4	Giunta v. Village West Dallas Development	O/C
5	Jahangiri v. Vahidramezani	O/C
6	Hernandez v. Smart & Final Stores LLC	The motion by Smart & Final Stores, LLC to reclassify the action filed by plaintiff Maria Hernandez from unlimited civil to limited civil is GRANTED. The governing standard for reclassifying unlimited to limited jurisdiction is found in <i>Walker v. Superior Court</i> (1991) 53 Cal.3d 257. There, the Supreme Court stated the trial court must conclude that resolution of the action will <i>necessarily</i> fall short of the jurisdictional minimum before transferring a case from limited to unlimited jurisdiction, i.e., that a greater recovery “could not be obtained” or is “virtually unobtainable.” <i>Id.</i> at p. 269-270. Appellate courts have underscored the high threshold set by <i>Walker</i>: “[The plaintiff] may well not prevail on the factual disputes regarding the extent of his injuries But a [<i>Walker</i>] hearing is not to be perceived as a minitrial or an opportunity for a trial judge to put forth a well-educated guess of a verdict. The <i>unlikelihood</i> of a judgment in excess of \$25,000 is <i>not the test</i>. The trial court reviews the record to determine whether the result is obtainable. Simply stated, the trial court looks to the possibility of a jurisdictionally appropriate verdict, not to its probability.” <i>Maldonado v. Superior Court</i> (1996) 45 Cal.App.4th 397, 402, original italics; see also <i>Ytuarte v. Superior Court</i> (2005) 129 Cal.App.4th 266, 270; <i>Singer v. Superior Court</i> (1999) 70 Cal.App.4th 1315, 1317; <i>Andre v. Superior Court</i> (1991) 2 Cal.App.4th 11, 19. Here, on 4/13/20 plaintiff tripped on a pallet cart at Smart & Final and sustained a 1.5cm abrasion to her shin that healed. There is no indication of any residual scar from the abrasion. As a result of the fall, she also sustained pain to her entire left side. Although plaintiff went to a local clinic for the abrasion, she never mentioned the pain in her side. The total medical specials are apparently only \$40 and there is no indication of any proposed future treatment. There is no claim for loss of income. While plaintiff asserts that she has ongoing complaints of pain on her left side, there is no indication that a health care provider has made causal connection to the subject incident or otherwise documented the symptoms. In fact, in the 3 ½ years since the incident, the plaintiff has never been to a doctor for treatment of, nor mentioned to any health care provider, that she had pain in her side. Plaintiff’s reference to covid restrictions does not explain the failure to seek treatment during the past year. While plaintiff points out that there can be cases where economic damages are waived and the verdict on general damages exceeds

		\$25,000. However, it has been the Court's experience that this occurs where the actual treatment is significant or there is a significant injury. Here, there are virtually no economic damages and the only objective injury has healed without consequence. In consideration of the evidence submitted, it must be said that "the verdict will 'necessarily' fall short of the superior court jurisdictional requirement of a claim exceeding \$25,000." (<i>Walker v. Superior Court</i> (1991) 53 Cal.3d 257, 269-270) Accordingly, the motion is GRANTED. The Court therefore ORDERS that this case be reassigned to limited civil. Counsel for Smart & Final, LLC. is ordered to give notice of this ruling.
7	Razo v. Andersson	Cont. to 12/11.
8	Daleh v. NPI Dept Fund II, LP et al.	Before the Court is an Order to Show Case re: Issuance of a Preliminary Injunction to prevent Defendants from foreclosing upon, selling, transferring, or executing any Trustee Deed's Upon sale for the subject real property located at 25121 Arctic Ocean Drive, Lake Forest CA 92630. The court finds a Preliminary Injunction is warranted in this instance. The burden is on the moving party to show all elements necessary to support issuance of a preliminary injunction. (<i>O'Connell v. Superior Court</i> (2006) 141 Cal.App. 4th 1452, 1481.) The moving party has the burden to show that it is reasonably probable it will prevail on the merits. (<i>San Francisco Newspaper Printing Co. v. Superior Court</i> (1985) 170 Cal.App.3d 438, 442; Weil & Brown, ¶ 9:632.1.) Additionally, "[i]n deciding whether to issue a preliminary injunction, a trial court weighs two interrelated factors: [1] the likelihood the moving party ultimately will prevail on the merits, and [2] the relative interim harm to the parties from the issuance or nonissuance of the injunction." (<i>Whyte v. Schlage Lock Co.</i> (2002) 101 Cal.App.4th 1443, 1449-1450.) Here, the likelihood of prevailing is based not only on Plaintiff's arguments but also on the entry of default as to Defendant NPI. As to the breach of contract claim, it is clear that the full amount of the loan was never disbursed. While Defendant presents the "Improvement Loan Agreement" attached to the Declaration of Scott Lowe as Exhibit 2, that document states that the loan would "bear interest on so much of the principal sum as shall be advanced pursuant to the terms of the Promissory Note of even date" and "The Loan shall bear interest on each Advance from the date of the Advance in accordance with the terms of the Note." As it is clear that the full amount of \$3,150,000 was never advanced, Plaintiff's assertion that it was erroneously charged interest on the full loan amount is likely to succeed. Particularly as Defendant is currently in default in this case, Plaintiff has shown a likelihood of success on the merits.

		As to interim harm, it is clear that Plaintiff stands to lose the property and any sums of money and hours already expended into the property. Defendant has not presented any risk of interim harm if the injunction is issued. As such the Preliminary Injunction is GRANTED. As to bond, Defendant's request for a bond of \$2,000,000 is unsupported. Defendant has not articulated any possible damages at all beyond the continually accruing interest. As such, the bond is set at \$200,000, representing approximately six months of interest. Moving party to give notice.
9	Baglien v. Garcia	Defendants County of Orange ("County" individually), Nicholas Doty ("Doty" individually), Steve Hertz ("Hertz" individually), and Adewale Olukoju's ("Olukoju" individually; "Defendants" all together) Motion for Summary Judgment, or Alternatively, Summary Adjudication ("Motion") is GRANTED in its entirety. "(p) For purposes of motions for summary judgment and summary adjudication: . . . (2) A defendant . . . has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." (Civ. Proc. Code § 437c(p)(2).) "(f)(1) A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Civ. Proc. Code § 437c(f)(1).) "The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections

have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact." (Civ. Proc. Code § 437c(c).)

Defendants bring their Motion as to the three causes of action ("COA") pled against them (Nos. 13, 14, and 16) and/or seek summary adjudication on several issues.

1) COA No. 13 – Ralph Act - Civ. Code § 51.7

"The elements of a Ralph Act claim for threatened violence under California law are: (1) The defendant intentionally threatened violence against the plaintiff or her property, whether or not [] defendant actually intended to carry out the threat; (2) A substantial motivating reason for the defendant's conduct was her perception of the plaintiff's protected characteristic as defined by the statute . . . ; (3) A reasonable person in plaintiff's position would have believed that defendant would carry out the threat; (4) A reasonable person in plaintiff's position would have been intimidated by defendant's conduct; (5) Plaintiff was harmed; and (6) Defendant's conduct was a substantial factor in causing the plaintiff's harm." (*Black Lives Matter-Stockton Chapter v. San Joaquin Cty. Sheriff's Off.*, 398 F. Supp. 3d 660, 678–79 (E.D. Cal. 2019).) One of the protected characteristics as defined by the statute is "position in a labor dispute." (Civ. Code § 51.7(b)(1).)

"(a) A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.

(b) Except as otherwise provided by statute, a public entity is not liable for an injury resulting from an act or omission of an employee of the public entity where the employee is immune from liability." (Gov't Code § 815.2.)

"Except as otherwise provided by statute, a public employee is not liable for an injury resulting from his act or omission where the act or omission was the *result of the exercise of the discretion vested in him, whether or not such discretion be abused.*" [Emphasis added.] (Gov't Code § 820.2.) "Sheriffs are among the public employees subject to immunity under section 820.2." (*Steinle v. City & Cnty. of San Francisco*, 230 F. Supp. 3d 994, 1020 (N.D. Cal. 2017), *aff'd*, 919 F.3d 1154 (9th Cir. 2019).)

Defendants contend this COA is barred as the officers are immune under Gov't Code § 820.2 as their acts regarding Plaintiff were discretionary and not ministerial, and that Plaintiff cannot show any violence was committed against her as required under this COA.

"Whether or not a public employee is immune from liability under section 820.2 depends in many cases upon whether the act in

question was “discretionary” or “ministerial,” respectively. [Citations.] For this reason, contentions such as the City makes here have frequently required judicial determination of the category into which the particular act falls: i.e., whether it was ministerial because it amounted “only to an obedience to orders, or the performance of a duty in which the officer is left no choice of his own,” or discretionary because it required “personal deliberation, decision and judgment.” (McCorkle v. City of Los Angeles (1969) 70 Cal. 2d 252, 260–61 (“McCorkle”).)

“[T]here is no requirement that the public employee's exercise of discretion be based on “a *strictly careful, thorough, formal, or correct* evaluation” because “[s]uch a standard would swallow an immunity designed to protect against claims of carelessness, malice, bad judgment, or abuse of discretion in the formulation of policy.” (Krolikowski v. San Diego City Employees' Ret. Sys. (2018) 24 Cal. App. 5th 537, 550–51.)

Here, Patricia Baglien (“Plaintiff”) and Plaintiff’s former employers, Nicole Garcia (“Nicole” individually) and George Garcia (“Garcias” together with Nicole), had a disagreement over whether Plaintiff could continue to remain in the home after Plaintiff’s employment was terminated. Defendants arrived on scene to find a dispute over the right to be on the property. Defendants then proceeded to gather information from the individual present. Plaintiff told Defendants she had not been evicted, that the unlawful detainer action was still pending, that Nicole had changed the locks which required Plaintiff to enter the house through a window, and Nicole had boxed up all of Plaintiff’s possessions when Plaintiff was away in Las Vegas for three-days. Plaintiff could produce no lease or contract stating she had the right to be on the property. Nicole notified Defendants that she was the owner of the home, she had evicted Plaintiff and Plaintiff had no right to be there, Nicole had a special needs child who could not communicate when he was sick, and she was concerned about Plaintiff possibly transmitting COVID to Nicole and the children since Plaintiff had been gone. Garcias’ new childcare provider notified Defendants that Plaintiff had been yelling, which scared the children. Defendants then attempted to mediate a peaceful resolution between Plaintiff and Nicole wherein Nicole would give Plaintiff \$600 to leave the property and rent a hotel room. Defendants gave Plaintiff the option to take the money and leave, or to be arrested for trespassing.

The actions of Defendants, with perhaps the exception of the initial response to the call, all appear to be discretionary and not ministerial as Defendants appeared to have weighed the evidence presented to them and decided to order Plaintiff to leave the property under threat of arrest. While Plaintiff alleged the COVID-19 moratorium on evictions was in place at the time and Defendants improperly “evicted” her, Defendants appear to have taken this into consideration as Plaintiff notified Defendants of the issue and Hertz contacted someone in the eviction department to determine if the moratorium applied to this set of facts.

"[U]nder California law "[i]t is generally recognized that a statutory governmental immunity overrides a statute imposing liability." [Citations.] Thus, absent "a clear indication of legislative intent that statutory immunity is withheld or withdrawn," a specific statutory immunity applies to shield a public employee from liability imposed by a particular statute." (*O'Toole v. Superior Ct.* (2006) 140 Cal. App. 4th 488, 504 [Applying immunity under Gov't. Code § 820.6.]; See also, *Towery v. State of California* (2017) 14 Cal. App. 5th 226, 235-37.) "On our examination of Civil Code section 52.1, we have found no indication the Legislature intended to create an exception to the general rule. Civil Code section 52.1 contains no indicia reflecting an intent that public employees may be sued despite a statutory immunity that would otherwise apply." (*O'Toole, supra*, 140 Cal. App. 4th at 504.)

Defendants have successfully met their initial burden of proving a complete defense to this COA pursuant to Gov't. Code § 820.2. The burden now transfers to Plaintiff to show triable issues of material fact remain.

Plaintiff argues, "instead of interpreting "discretionary" literally, the focus should be on the policy considerations underlying the governmental entity's claim of immunity." (*Steinle v. City & Cnty. of San Francisco*, 919 F.3d 1154, 1160–61 (9th Cir. 2019).) However, the policy considerations in granting police immunity in this situation favor granting the motion instead of denying it. Although Plaintiff was threatened with arrest, she was never arrested. Although the officers might have violated the COVID eviction moratorium, they acted in their discretion in doing so in order to keep the peace. Gov't Code § 820.2 was designed to protect (among others) police who exercise their discretion. Here, the officers arrived for what is essentially a trespass/domestic disturbance call, were provided information that Plaintiff had illegally entered the property, and the officers attempted to work out a peaceful resolution in a potentially volatile situation that occurred in the early stages of a worldwide pandemic. This is the type of situation where in public policy would support providing immunity to the officers to keep the peace and find peaceful solutions to potentially volatile disagreements. The officers have sufficiently pled a valid defense to Ralph Act with Gov't Code § 820.2.

As the officer defendants are immune pursuant to Gov't Code § 815.2, there can be no liability as to the County. (Gov't Code § 815.2)

Additionally, as Plaintiff produced no evidence of any violence perpetrated on her or her property other than a deposition testimony, Plaintiff cannot maintain this COA. The mere threat of an arrest, and in some instances an arrest itself, are not enough to support a Ralph Act claim. "Unlike section 52.1 [Bane Act], section 51.7 [Ralph Act] expressly requires that a plaintiff allege "violence, or intimidation by threat of violence." Cal. Civ. Code § 51.7(a). We agree with the district court that an arrest or threat of arrest alone does not necessarily involve violence or a threat of violence."

(*Moreno v. Town of Los Gatos*, 267 F. App'x 665, 666–67 (9th Cir. 2008).)

As Plaintiff has also produced no evidence of actual violence towards her or threats of actual violence towards her, she cannot prevail on this COA.

The Motion is **GRANTED** as to this COA.

2) COA No. 14 – Bane Act – Civ. Code § 52.1

As with the Ralph Act (*supra*) Defendants have provided a valid defense to the Bane Act with Gov't Code §§ 820.2 and 815.2. (*Towery, supra*, 14 Cal. App. 5th at 234-36.)

The Motion is **GRANTED** as to this COA.

3) COA No. 16 - Battery

Plaintiff previously dismissed County and Doty from this COA. (ROA ##102, 104.) Only the claims against Hertz and Olukoju remain.

"A claim served on a governmental entity must fairly describe what that entity is alleged to have done. A theory of recovery not included in the claim may not thereafter be maintained. [Citations.] However, while the circumstances described in a claim must substantially correspond with the causes of action pled, the claim need not conform to pleading standards. [Citation.] "The primary function of the [Government Tort Claims Act] is to apprise the governmental body of imminent legal action so that it may investigate and evaluate the claim and where appropriate, avoid litigation by settling meritorious claims. [Citations.]" " (*Shoemaker v. Myers* (1992) 2 Cal. App. 4th 1407, 1426.)

As to Plaintiff's Government Tort Claim, Plaintiff identified the employees who allegedly caused her injury (Doty, Hertz, and unidentified African-American Deputy who claimed he was a supervisor ~ Olukoju), she gave the date, the location, and the names of witnesses. (TAC, Ex. 10.) As to the facts, the claim in essence states the officers arrived at the Property wherein Plaintiff was a lawful resident. Plaintiff had previously been notified by officer Doty that law enforcement had no legal right to remove Plaintiff. The defendant officers arrived and threatened Plaintiff with violence and forcible arrest if she did not vacate the Property. It appeared the officers knew the homeowner and were doing an illegal personal favor for the homeowner. The supervising officer (Olukoju) threatened Plaintiff with violent arrest and was verbally abusive to Plaintiff. Plaintiff was deprived of her home and left homeless because of the intentional acts of the officers.

The battery allegations and battery cause of action were not included in Plaintiff's government claim. These are new allegations and a new cause of action unique to the TAC. The County was not apprised of them in the claim, and therefore did not have the

opportunity to investigate and consider settling the matter prior to the complaint in this action being filed.

Plaintiff contends that a governmental claim is only necessary against an entity and not against individuals (Gov't Code § 950) and as County was dismissed from this COA, she can properly proceed against Hortz and Olukoju.

However, "[t]he drafters of the Tort Claims Act perceived that unless some kind of a claim procedure were made a precondition to suit against individual public employees, the protection provided by the requirement of a claim against the entity would be "largely negate[d]": "[I]f an action against the public entity were barred because a claim was not presented to the public entity ..., the claimant could, nevertheless, bring an action against the employee involved and recover a judgment which the public entity ordinarily would then be required to pay" without having had the opportunities for early investigation, prompt settlement, adequate defense, and remedial action the claim procedure was intended to provide. [Citation.] Accordingly the Legislature included in the Tort Claims Act what amounts to a requirement that (with exceptions not relevant here) one who sues a public employee on the basis of acts or omissions in the scope of the defendant's employment have filed a claim against the public-entity employer pursuant to the procedure for claims against public entities." (*Briggs v. Lawrence* (1991) 230 Cal. App. 3d 605, 613.) "Failure to allege compliance renders the complaint in such an action subject to general demurrer." (*Id.*) Further, "[e]xcept as provided in Section 950.4, a cause of action against a public employee or former public employee for injury resulting from an act or omission in the scope of his employment as a public employee is barred if an action against the employing public entity for such injury is barred under Part 3 (commencing with Section 900) of this division or under Chapter 2 (commencing with Section 945) of Part 4 of this division. This section is applicable even though the public entity is immune from liability for the injury." (Gov't Code § 950.2.) "This section, therefore, requires the presentation of a claim to the public entity in all cases, even where the action is filed against the public employee, himself, for injury resulting from an act or omission in the scope of his employment. Compliance with this requirement of filing a claim is an integral part of the plaintiff's cause of action that must be pleaded and proved by him." (*Williams v. Townsend*, 283 F. Supp. 580, 583 (C.D. Cal. 1968), disapproved of on other issue by *Donovan v. Reinbold*, 433 F.2d 738 (9th Cir. 1970).)

As County is liable for any damages awarded from the acts of the Hortz and Olukoju as they were officers acting within the course and scope of their job duties at the time of the incident, Plaintiff was required to file a complete and proper government claim that included the battery allegations. As Plaintiff failed to do that, the claims are barred against Hortz and Olukoju.

The Motion is **GRANTED** as to this COA.

4) Objections and Request to Take Judicial Notice

Plaintiff's Objections:

Hortz Decl.

Sustained as to Nos. 1 – 6 (*Fuller v. Superior Ct.* (2001) 87 Cal. App. 4th 299, 306.)

"[C]ourts must also consider the interests of the plaintiff in civil litigation where the defendant is exposed to parallel criminal prosecution. Plaintiffs are entitled to an expeditious and fair resolution of their civil claims without being subjected to unwarranted surprise. Among the myriad purposes of the civil discovery statutes is to safeguard against surprise and gamesmanship, and to prevent delay. [Citation.] It would be manifestly unfair to petitioners if the security guards were to invoke their privilege against self-incrimination and later elect to waive that privilege and testify at trial about the same matters. "A litigant cannot be permitted to blow hot and cold in this manner. [Citations.]" [Citation.] " '[T]he fact that a man is indicted cannot give him a blank check to block all civil litigation on the same or related underlying subject matter. Justice is meted out in both civil and criminal litigation" [Citations.]' " " (*Fuller v. Superior Ct.* (2001) 87 Cal. App. 4th 299, 306.)

Doty Decl.

Sustained as to Nos. 7 (hearsay, conclusion improperly elicited); 9 (legal conclusion, lacks foundation, speculation and lack of personal knowledge); and 10 (Plaintiff admitted to leaving the Garcia residence for three days to go to Las Vegas in violation of California's stay-at-home order." and "Nicole Garcia informed me that she had a special needs son for whom exposure to Covid-19 could be incredibly dangerous. Accordingly, Plaintiff reentering the residence could have had dire consequences." – lacks foundation and personal knowledge, improper conclusion).

Overruled as to Nos. 8 and 11 (mindset); and 10 ("I was concerned about Plaintiff reentering the residence due to her potential Covid-19 exposure." And "Plaintiff was forcibly coughing during the incident." – Personal observation).

Olukoju Decl.

Sustained as to Nos. 12 (double hearsay, lacks foundation, improper conclusion); 14 (legal conclusion, lacks foundation, speculation and lack of personal knowledge); and 15 (Plaintiff admitted to leaving the Garcia residence for three days to go to Las Vegas in violation of California's stay-at-home order." and "Nicole Garcia informed me that she had a special needs son for whom exposure to Covid-19 could be incredibly dangerous. Accordingly, Plaintiff reentering the residence could have had dire consequences." – lacks foundation and personal knowledge, improper conclusion).

		Overruled as to Nos. 13 and 16 (mindset); 15 ("I was concerned about Plaintiff reentering the residence due to her potential Covid-19 exposure." And "Plaintiff was forcibly coughing during the incident." – Personal observation). <u>Overstreet Decl.</u> Sustained as to No. 17 (hearsay, lacks foundation and personal knowledge, assumes facts not in evidence). <u>Request to Take Judicial Notice</u> Grant as to Executive Order N-28-20 pursuant to Evid. Code § 452(c), (g), and (h). <u>Defendants' Objections:</u> Sustained as to Nos. 1 (lacks foundation, speculation). Overruled as to Nos. 2, 4 (mindset). Not material (Civ. Proc. Code § 473c(q)) as to No. 3. Moving party to give notice of the above rulings, and file a proposed judgment with proof of service within 15 days.
10	Doyon et al v Mickle & Lucky Estates, LLC et al	<u>Motions 1 – 11:</u> On 9/15/23 and 9/18/23, Plaintiff Stephen Doyon (here, "Plaintiff") filed twelve discovery motions, one of which was heard on 10/16/23. The other 11 such motions are before the Court here. They are as follows: <u>a) Motions 1 & 2 (ROAs 46 and 66):</u> Plaintiff moves for orders to deem admitted the Requests for Admissions, Set One, as directed to defendants Rajwant Kaur ("Kaur") and Jazzy Gill aka Jazzy Singh ("Gill"), for failure to respond thereto, and for \$1,280.88 in sanctions on each such motion, against Gill and Kaur, respectively; <u>b) Motions 3-5 (ROAs 62, 82 and 50):</u> Plaintiff moves to compel responses without objections to Requests for Production, Set One, as directed to Defendant Mickle & Lucky Estates, LLC (here, "Owner"), Kaur and Gill, for failure to respond thereto, and for \$1,280.88 in sanctions on each such motion, against Owner, Kaur, and Gill, respectively; <u>c) Motions 6-8 (ROAs 70, 78 and 74):</u> Plaintiff moves to compel responses without objections to Special Interrogatories, Set One, as directed to Defendants Kaur, Owner, and Gill, for failure to respond thereto, and for \$1,280.88 in sanctions on each such motion, against Kaur, Owner, and Gill, respectively; and <u>d) Motions 9-11 (ROAs 54, 58, and 86):</u> Plaintiff moves to compel responses without objections to Form Interrogatories, Set One, as directed to Defendants Kaur, Owner, and Gill, for failure to respond thereto, and for \$1,280.88 in sanctions against Kaur and Gill, respectively, and for \$1,335.88 in sanctions against Owner.

For Motions 1-11, the consolidated Opposition demonstrates that responses to the discovery at issue were provided while the motions were pending. (ROA 160, Choi Decl., Ex. C.) Motions 1-11 are therefore **MOOT**, except as to requests for sanctions.

In light of the failures to respond which resulted in the filing of these motions, sanctions are plainly warranted here. Although the Opposition has offered explanations as to the causes for those delays (Choi Decl., ¶¶ 4-12), none of what has been stated excuses the failure on the part of the clients to remain reasonably available to their counsel to respond to discovery.

The Court thus finds that sanctions are warranted on each of these motions, as to the clients only, in the reduced sum of \$354.06 per motion. Sanctions are therefore imposed in the total sum of \$1,416.24 against Gill, \$1,416.24 against Kaur, and \$834.54 against Owner, on these motions. Such sanctions are to be paid to Plaintiff, through his counsel of record, within 30 days after service of notice of this ruling.

Motion 12: On 10/13/23, Defendants filed a Motion for Protective Order (ROA 95) to stay the deposition of Gill, individually and as the designated person most knowledgeable ("PMK") for Owner, due to Gill's current incarceration in federal prison.

The Motion is **DENIED**. Where a party seeks a protective order for discovery, the burden is on the party seeking the protective order to show good cause for whatever order is sought. (*Nativi v. Deutsche Bank National Trust Co.* (2014) 223 Cal.App.4th 261, 318.) Defendants have not met that burden here.

The evidence presented demonstrates that Plaintiff noticed a deposition for Gill at the prison, but defense counsel objected due to "unavailability" – evidently without further explanation, and without identifying other imminent alternate dates. (ROA 162, Belisle Decl., ¶¶ 9-18, Exs. C-K.) That does not suffice to justify the objection, let alone a protective order.

Defendants otherwise argue that it would have been more convenient and less expensive for the defense if Plaintiff had instead been willing to wait to take the deposition until Gill was released. But they have failed to show why they could not reasonably have prepared for and then defended the deposition in person, as scheduled by Plaintiff. Nor was it reasonable to demand that Plaintiff wait indefinitely to take the deposition, particularly without any documentation to show that release was imminent. Under the circumstances, Plaintiff was entitled to insist that the deposition proceed as noticed. And although the reply now offers some evidence to support the assertion that at least a partial release may now be imminent, that is again not an adequate basis for issuance of a protective order here. Motion 12 is therefore **DENIED**. In accordance with C.C.P. § 2025.420(g), counsel are to confer to schedule the deposition of Gill, individually and to the extent designated as the PMK for Owner, forthwith. Defendants and their

		counsel are expected to cooperate in setting that deposition at the earliest practicable date. For the reasons stated above, Defendants' request for sanctions is also DENIED. However, Plaintiff's request for sanctions, as stated in the Opposition filed as ROA 162, is well-taken here, and is therefore GRANTED. The sum claimed by Plaintiff for sanctions on this motion appears reasonable in context. Sanctions are therefore imposed against attorneys Frederick H. Choi and Resnick & Louis, P.C. under C.C.P. § 2025.420(h), in the amount of \$3,420, to be paid to Plaintiff, through his counsel of record, within 30 days after service of notice of this ruling. Counsel for Plaintiff is to give notice of these rulings.
11	Calderon v. Danesh	No tentative
12		
13		
14		
15		
16		
17		
18		
19		
20		
21		
22		
23		
24		
25		
26		